

In The Supreme Court of Bangladesh

High Court Division

(Criminal Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MD. SHOHROWARDI

CRIMINAL APPEAL NO. 2095 OF 1998

Md. A. Rashid Chowhan alias Sree Rashid

Chowhan alias Sree Rashik and others

..... Appellants

-Versus-

The State and another

No one appears

.....For the appellants.

Mr. S.M. Golam Mostofa Tara, DAG with

Mr. Md. Shaifour Rahman Siddique Saif, A.A.G

... For the State

Heard on 13.07.2023, 16.07.2023

Judgment delivered on 19.07.2023

Md. Shohrowardi, J.

This appeal has been preferred under Section 30 of the Special Powers Act, 1974 against the judgment and order dated 26.08.1998 passed by Additional Sessions Judge, Court No. 2 and Anti Smuggling Tribunal, Rajshahi in Special Powers Act Case No. 174 of 1996 convicting the appellants under section 25B (1) (b) of the Special Powers Act, 1974 and sentencing them to suffer rigorous imprisonment for 03 (three) years and to pay a fine of Tk. 5000 each, in default, to suffer rigorous imprisonment for 06 months.

The prosecution case in short, is that the informant P.W. 1 BDR Habilder Musa Mia lodged FIR on 27.06.1995 with Godaghari Police Station alleging, inter alia, that on 27.06.1995 at 11.30 pm he along

with Constable No. 23340 Abdul Khaleque and constables of customs department Abdul Khaleque and Salauddin searched the truck No. Dhaka Metro Ta-11-0181 and recovered 80 pieces of Indian Minu Sharee, 16 tons of stone, 1411 kgs fazly mangos, 2 kgs dry mango, 2 pieces of triphala and detained accused 1. Md. Munir Uddin 2. Md. Ibrahim 03. Truck driver Md. Abdur Rashid and helper 4. Md. Kamal Hossain and took the signature of the witnesses on the seizure list at the place of occurrence and handed over the accused persons to Godagari Thana.

P.W. 7 Tarun Kumar, Officer-in-Charge of Godagari Thana took up the investigation of the case and during the investigation, he visited the place of occurrence, prepared the sketch map and index and recorded the statement of the witnesses under section 161 of the Code of Criminal Procedure, 1898 and during the investigation, he found prima facie truth of the allegation brought against the accused persons and submitted charge sheet against them.

During the trial, charge was framed against the accused persons under section 25B of the Special Powers Act, 1974 which was read over to them and they pleaded not guilty and claimed to be tried in accordance with law. The prosecution examined 07 witnesses to prove the charge against the accused persons. After examination of the prosecution witnesses, the accused persons were examined under section 342 of the Code of Criminal Procedure, 1898 and they declined to examine any DW. After concluding the trial, the trial Court by impugned judgment and order convicted the accused persons as stated above against which they filed the instant appeal.

P.W. 1 Habildar Musa Mia is the informant. He stated that at the time of occurrence, he was posted at Bidirpur Cheekpost and the occurrence took place on 27.06.1995. On that day, at about 11.30 pm a truck came to the place of occurrence and there were mangos and stones in the truck. They recovered 80 pieces of Indian Minu shares

kept in the truck and 4 accused persons were detained and in the presence of the witnesses seizure list was prepared and the goods were handed over to Gudagari Customs House. He proved the seizure list as exhibit-1 and his signature as exhibit-1/1. He proved the FIR as exhibit-2 and his signature as exhibit-2/1.

P.W. 2 Sepoy Abdul Khaleque stated that at the time of occurrence on 27.06.1995, he was posted at Bidirpur Cheekpost. On that day at 11.30 pm, a truck came at the cheek post from Chapai and Indian shares were recovered from that truck and in the presence of witnesses the goods were seized. The accused persons were handed over to police and the recovered goods were handed over to the Customs authority.

P.W. 3 Obaidul Haq is the witness on the seizure list. He stated that the occurrence took place about 02 years ago at 10/11. As per instruction, he signed the seizure list. He proved his signature as exhibit-1/2.

P.W. 4 Nabo Kumar Das is also a witness of the seizure list. He stated that as per instruction, he signed the seizure list. He proved his signature in the seizure list as exhibit-1/3.

P.W. 5 A.S.I. Md. Shamsul Alam stated that on 28.04.1995, he was posted at Gudagari Thana. P.W. 1 Habildar Musa Mia along with 4 accused persons lodged the FIR and he recorded the FIR. He proved the FIR form as exhibit-3 and his signature as exhibit-3/1.

P.W. 6 Md. Moniruzzaman is an officer of the Customs Department. He stated that his predecessor officer received the goods detained in connection with Gudagari Customs Case No. 352 of 1995 dated 28.06.1995. The mangos were sold in an auction and the truck and triple were given in custody. The sale proceeds were deposited in the account of Sonali Bank. He proved the attested copy of the challan as exhibit 4. He produced 01 piece of Indian shares which was proved as material exhibit-I.

P.W. 7 Tarun Kumar Mohori is the investigating officer. He stated that during the investigation, he visited the place of occurrence, prepared the sketch map and index, and recorded the statements of the witnesses under section 161 of the Code of Criminal Procedure, 1898. He found prima facie truth in the allegation made against the accused persons and submitted charge sheet against them. He proved the sketch map as exhibit-5 and his signature as exhibit-5/1. He proved the index as exhibit-6 and his signature as exhibit-6/1.

No one appears on behalf of the appellants.

The learned Deputy Attorney General Mr S.M. Golam Mostofa Tara appearing along with learned Assistant Attorney General Mr Md. Shaifour Rahman Siddique Saif on behalf of the state submits that the appellants were arrested from the place of occurrence along with 80 pieces of Indian Minu shares and they failed to produce any documents as regards the import of those shares from India. Therefore, they committed an offence under section 25B (1) (b) of the Special Powers Act, 1974 and the prosecution witnesses proved the charge against the appellants beyond all reasonable doubt. He prayed for the dismissal of the appeal.

I have considered the submission of the learned Deputy Attorney General, perused the evidence, impugned judgment and order passed by the trial court and the records.

On perusal of the records, it appears that P.Ws. 1 and 2 are the witnesses of the alleged recovery of 80 pieces of Indian Minu shares recovered from truck. During trial, P.W. 6 proved one piece of Indian Minu sharee as material exhibit-I. P.Ws. 3 and 4 are the witnesses of the seizure list. The alleged occurrence took place at 11.30 pm. P.Ws. 3 and 4 stated that as per instruction they signed the seizure list. P.W. 5 is the recording officer and P.W. 7 is the investigating officer. P.Ws. 1 and 2 are the witnesses of recovery and P.Ws. 3 and 4 are the witnesses of the seizure list but none of them mentioned the name of the

appellants in their evidence. Therefore, I am of the view that the trial court convicted the appellants without proper assessment of evidence.

In view of the above observation, findings and reasoning, I find merit in the appeal.

In the result, the appeal is allowed.

The impugned judgment and order of conviction and sentence passed by the trial court are hereby set aside.

Send down the L.C.R. at once.

(MD. SHOHROWARDI, J.)